

THE COMPANIES ACT, 1956**PUBLIC COMPANY LIMITED BY SHARES****ARTICLES OF ASSOCIATION****OF****MANAKSIA INDUSTRIES LIMITED****PRELIMINARY**

1. Unless the context otherwise requires words of expressions contained in these Articles shall bear the same meaning as in Companies Act, 1956 or any statutory modification there in force at the date which the Articles become binding on the company.

"The Act" mean the companies Act, 1956.

"The Articles" means the Articles of Association as originally framed or as altered from time to time by special Resolution".

"The company" means the above named Company.

"Dividend" includes Bonus.

"The Directors" means the Directors for the time being of the Company.

"The Board of Directors" or "The Board" means the Board of Directors for the time being of the Company.

"The Managing Directors" means the Managing Directors for the time being of the Company.

"The Secretary" means the Secretary, the Additional Secretary or the Assistant Secretary for the time being of the company.

"The Office" means the Registered office for the time being of the company.

"The Register" means the Register of members of the Company required to be kept pursuant to the Act.

"Member" means person whose name is entered in the Register of Members as holding any share either solely or jointly.

"The Registrar" means the Registrar of companies of the State in which the registered office of the Company is situated.

"Month" means the English Calendar Month.

"The Seal" means the common seal of the Company.

"Proxy" includes Attorney duly constructed under a power of Attorney.

In Writing" and "Written" include printing, lithography and other modes of representing or reproducing words in a visible form.

Words importing the singular number shall include the plural number and Vice – Versa.

Words importing persons shall include body corporates.

Words importing the masculine gender shall include the feminine gender and vice – versa.

2. Save as reproduced here in the regulations contained in Table “A” in the First Schedule to the Act shall not apply to the company.
3. **Articles to be contemporary in nature:**

The intention of these Articles is to be in consonance with the contemporary rules and regulations prevailing in India. If there is an amendment in any Act, Rules and Regulations allowing what was not previously allowed under the statute, the Articles herein shall be deemed to have been amended to the extent that Articles will not be capable of restricting what has been allowed by the Act by virtue of an amendment subsequent to registration of the Articles.

SHARE CAPITAL

- 4 The Authorised Share Capital of the Company shall be such amount as may from time to time be authorised by the Memorandum of Association of the Company.
- 5 The Company shall have the power, subject to the provisions of the Act, to increase or reduce the capital for the time being of the company and to divide the shares in the capital into several classes with rights, privileges or conditions as may be determined
- 6 New Capital same as existing Capital

Except so far as otherwise provided by the conditions of issue or by these presents, any capital raised by the creation of new shares, shall be considered as part of the existing capital, and shall be subject to the provisions herein contained, with reference to the payment of calls and installments, forfeiture, lien, transfer and transmission, voting or otherwise.

- 7 **Directors may allot shares as fully paid-up or partly paid-up**

Subject to the provisions of the Act and these presents the Board of Directors may allot and issue shares in the capital of the Company as payment or part payment for any property sold or goods transferred or machinery supplied or for Services rendered to the Company and any shares which may be so allotted may be issued as fully paid up or partly paid up and when so issued shall be deemed to be fully paid up shares or partly paid up shares, as the case may be.

- 8 **Unclassified Shares**

Any unclassified shares (whether forming part of the original capital or any increased capital of the Company) may subject to the provisions of the Act and these presents, be issued either with the sanction of the Company in General Meeting or by the Directors and upon such terms and conditions and with such rights and privileges attached thereto as may be directed by the General Meeting sanctioning the issue of such shares be directed and in all other cases, as the Directors shall determine, and in particular such shares may be issued with a preferential or qualified right to dividends and in distribution of the assets of the Company.

- 9 **Acceptance of Shares**

Any application signed by or on behalf of an applicant for shares in the Company, followed by an allotment of any shares therein, shall be an acceptance of shares within the meaning of these presents; and every person who thus or otherwise accept any shares and whose name is on the Register shall, for the purpose of these presents, be a Member.

10 Issue of Securities with differential and / or non-voting rights

Notwithstanding anything contained in these Articles and subject to the provisions of the Act and all other applicable provisions of law, the Company may issue securities, either equity or of any other kind of instrument with differential and/or non-voting rights on such terms and conditions as may by resolution be prescribed.

11 Further issue of capital

The new shares (resulting from an increase of capital as aforesaid) may, subject to the provisions of the Act and these presents, be issued or disposed of by the Company in General Meeting or by the Directors under their powers in accordance with these presents and the following provisions:

- (a) (i) Such further or new shares shall be offered to the persons who, at the date of the offer, are holders of the equity shares of the Company in proportion, as nearly as circumstance admit, to the capital paid up on those shares at that date;
 - (ii) The offer aforesaid shall be made by notice specifying the number of shares offered and limiting a time not being less than 30 days from the date of the offer, within which the offer, if not accepted, will be deemed to have been declined;
 - (iii) The offer aforesaid shall be deemed to include a right exercisable by the persons concerned to renounce the shares offered to him or any of them in favour of any other person; and the notice referred to in sub-clause (ii) shall contain a statement of this right;
 - (iv) After the expiry of time specified in the notice aforesaid, or on receipt of earlier intimation from the person whom such notice is given that he declines to accept the shares offered, the Board of Directors may dispose of them in such manner as they think most beneficial to the Company;
- (b) Nothing in clause (iii) of sub-article (a) shall be deemed:
- (i) To extend the time within which the offer should be accepted; or
 - (ii) To authorise any person to exercise the right of renunciation for a second time on the ground that the person in whose favour the renunciation was first made has declined to take the shares comprised in the renunciation.

12 Buy back of shares by the Company

Subject to and in full compliance of the requirements of the Act, as amended from time to time, and any Rules and Regulations that may be prescribed by the Securities and Exchange Board of India (SEBI) or any other appropriate authority in this regard, the Company, in a General Meeting by a Special Resolution or where permitted by the contemporary law, under the authority of Board meeting, may, at any time and from time to time, authorise buy-back of any part of the share capital of the Company fully paid-up on that date.

SHARES

- 13 Subject to the provisions of these Articles and of Section 80 of the Act, the Company shall have power to issue Preference Shares, which are, or at the option of the Company are to be liable to be redeemed on such terms and in such manner as the Company may determine.

- 14 Subject to the provisions of the Act, the shares shall be under the control of the Board, who may allot or otherwise dispose of the same to such persons on such terms and conditions at such times, either at par or at a premium or at a discount and for such considerations as the Board thinks fit, provided that no option or right to call for the allotment of any shares shall be given to any person or class of persons except with the sanction of the company in a General Meeting and any debenture, Debenture Stocks, Bonds or other Securities with the option or right to allotment of or conversion into shares shall not be issued except with the sanction of the Company in a General Meeting.

MODIFICATION OF RIGHTS

15. (i) If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may, subject to the provisions of Sections 106 and 107 of the Act, and whether or not the company is being wound up, be varied with the consent in writing of the holders of three – fourths of the issued shares of that class, or with the sanction of a special resolution passed at a separate meeting of the holders of the shares of that class.
- (ii) To every such separate meeting, the provisions of these Articles relating to general meetings shall mutates mutants apply, but so that the necessary quorum shall be two persons at least holding or representing by proxy one third of the issued shares of the class in question.
16. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking paripassu therewith.

TRUSTS NOT RECOGNISED

17. Except as required by Law, no person shall be recognised by the company as holding any shares upon any trust and the company shall not be bound by or be compelled in any way to recognised (even when having notice thereof) any equitable, contingent, future or partial interest in any share, or any interest in any fractional part of a share, (except only as by these regulations or by law otherwise provided) any other rights in respect of any share except an absolute right to the entirety thereof in the registered holder.

SHARE CERTIFICATE

18. Subject to the provisions of the Companies (Issue of Shares Certificates) Rules, 1960, or any statutory modification or reenactment thereof, share certificate shall be issued as follows :
- i) The Certificate of title to shares shall be issued under the seal of the company (affixed in presence of two Directors and secretary or some other persons appointed by the Board for the purpose, all of whom shall sign such share certificates) within three months after allotment of the shares (or within such other period as conditions of the issue shall provide) or within two month after the application for the registration of transfer of shares is received.
- ii Every member shall be entitled to receive
- (a) One Certificate for all his shares without payment, or
 - (b) Several Certificates, each for one or more of his shares, upon payment of Re 1/- for every certificate after the first which does not comprise shares in lots of market unite of trading ; or
 - (c) Several Certificate without payment as per the directions of the Stock Exchange in which the shares of the company are listed.
- iii Every Certificate shall specify the name of the person in whose favour the

Certificate is issued, the shares to which it relates and the amount paid up Thereon.

- iv In respect of any share or shares held jointly by several persons, the company shall not be bound to issue more than one certificate for a share to one of several joint holders (the person first name in the Register) shall be sufficient delivery to all such holders.
- v If any certificate be old, decrepit, worn-out, torn or defaced or, where the cages on its reverse side for recording transfers have been duly utilised, then upon surrender thereof to the company, the Board may order the same to be cancelled and may issue a new certificate in lieu thereof without payment. If any certificate be lost or destroyed, then upon proof thereof to the satisfaction of the Board and on such indemnity and payment of out of pocket expenses incurred by the Company in investigating evidence, as the Board think fit, a new certificate in lieu thereof may be given. Subject to the other provisions of the Articles for every such new certificate and for every new certificate issued on consolidation or sub-division of certificates, there shall be paid to the company, if the Board so determines, a sum not exceeding Re. 1/-
- vi No fee shall be charged for sub-division and consolidation of share and for sub-division of letters of allotment and split, consolidation, renewal and pucca transfer receipts into denominations corresponding to the market units of trading; for sub-division of renounceable letters of rights; for issue of new certificates in replacement of those which are old, decrepit or worn out, or where the cages on the reverse for recording transfer have been fully utilised. Provided that the Company may charge such fees as may be agreed by it with the Stock Exchange with which its shares may be enlisted for the time being for issue of new certificate in replacement of those that are torn, defaced, lost or destroyed and for sub-division and consolidation of shares and for sub-division of letters of allotment and split, consolidation, renewal and pucca transfer receipts into denominations other than those fixed for market units of trading.

JOINT HOLDERS OF SHARES

- 19 Where two or more persons are registered as the holders of any share they shall be deemed to hold the same as joint - tenants with benefit of survivorship subject to the provisions following and to the other provisions of these Articles relating to joint holders :

- (i) The Company shall not be bound to register more than four persons as the joint-holders of any share.
- (ii) The Joint-holders of share shall be liable severally as well as jointly in respect of all payments, which ought to be made in respect of such share.
- (iii) On the death of any one of such joint-holders the survivor or survivors shall be the only person or persons recognised by the company as having any title to or interest in such share but the board may require such evidence of death as it may deem fit.

COMMISSION & BROKERAGE

- 20.
- (i) The Company may exercise the powers of paying commissions conferred by Section 76 of the Act, provided that the rate per cent, or the amount of the Commissions paid or agreed to be paid shall be disclosed in the manner required by that Section
 - (ii) Subject to the provisions of the Section 76 of the Act, the rate of the commission shall not exceed the rate of five percent of the price at which the shares in respect whereof the same is paid are issued or an amount equal to five percent of such price,

as the case may be, and in case of debentures two and half percent of the price at which debentures are issued.

- (iii) The Commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or debentures or partly in one way and partly in the other.
- (iv) The company may also pay such brokerage as may be lawful on any issue of shares or debentures.

CALLS ON SHARES

21. The Board may, from time to time, subject to the terms on which any shares may have been issued, make calls on an uniform basis on all shares falling under the same class as it thinks fit, upon the members in respect of all moneys unpaid on the shares (whether on account of the nominal value of the shares or by way or premium) held by them receptively and not made payable at fixed times by conditions of allotment thereof and each members shall pay the amount or every call so made on him to the persons and at the time and places appointed by the Board.
22. A call shall be deemed to have been made at the time when the resolution of the Board authorising such call was passed unless the same is expressly made effective on any other date under such resolution.
23. Not less than 21 days notice of any call shall be given specifying the time and place of payment and to whom such call shall be paid.
24. A call may be made payable in installments.
25. The Board may, at its discretion, revoke or postpone the call or extend the time for payment thereof.
26. If the sum payable in respect of any call or installment be not paid on or before the day of appointed for payment thereof the holders for the time being of the share in respect of which the call shall have made or the installment shall be due, shall pay interest for the same at the rate of 9 per cent per annum (or at such other rate as the Board may determine) from the day appointed for the payment thereof to time of actual payment but the Board shall be at liberty to waive payment of the interest wholly or in part.
27. If by the terms of issue of any share or otherwise any amount is made payable at any fixed time or by installment at fixed times (whether on account of the nominal value of the share or by way of premium) every such amount or installments shall be payable as if it were a call duly made by the Board and of which due notice had been given and all provisions herein contained in respect of calls shall apply to such amount or installment accordingly.
28. The Board may receive from any member willing to advance the same all or any part of the money due upon the shares held by him beyond the sums actually called for, and upon the money so paid or satisfied in advance, or so much thereof, as from time to time exceeds the amount of the calls then made upon the shares in respect of which such advance has been made, the Company may pay interest at such rate as may be agreed but the member shall not be entitled to dividend or to participate in the profits of the Company or to any voting rights in respect of money so paid by him until the same would but for such payment become presently payable. Money so paid in excess of the amount of calls until appropriated towards satisfaction of any call shall be treated as advance to the Company and not a part of capital and shall be repayable at any time if the Board so decides.

FORFEITURE AND LIEN

29. If any member fails to pay the whole or any part of any call or installment of a call or any money due in respect of any shares (either by way of nominal value of shares or by way of premium and / or interest thereon) on or before the day appointed for the payment of the same, the Board may, at any time thereafter during such time as the call or installment or other money remains unpaid serve a notice on such member or on the person (if any) entitled to the share by transmission requiring him to pay the same together with any interest that may have accrued and all the expenses that may have been incurred by the Company by reason of such non - payment.
30. The notice shall name a day (not being less than 21 days from the date of notice) and a place or places on and at which such call or installment other money and such interest and expenses as aforesaid are to be paid. The notice shall also state that in the event of non-payment at or before the time and at the place or places appointed, the share in respect of which such call was made or installment in payable or any other money is due will liable to be forfeited.
31. If the requirements of any such notice as aforesaid are not complied with, any share in respect of which such notice has been given may, at any time thereafter before the payment of all calls or installments or any other money, interest and expenses due in respect thereof, be forfeited by a resolution of the Board to that effect and such forfeiture shall be recorded in Director's Minute Book. Such forfeiture shall include all dividends declared in respect of the forfeited shares and not actually paid before the forfeiture. Neither the receipt by the Company of a portion of any money which shall from time to time be due from any member of the Company in respect of his shares, either by way of principal or interest, nor any indulgence granted by the Company in respect of the payment of any such money shall preclude the Company from thereafter proceeding to enforce a forfeiture of such shares as herein provided.
32. When any share shall have been so forfeited, notice of the forfeiture shall be given to the holder of such share in whose name it stood immediately prior to the forfeiture and an entry of the forfeiture with the date thereof, shall forthwith be made in the Register but no forfeiture shall be in any manner invalidated by any omission or neglect to give such notice or to make such entry as aforesaid.
33. Any share so forfeited shall deemed to be the property of the Company and the Board may sell, re-allot or otherwise dispose of the same in such manner as it thinks fit. The Board may at any time before any shares so forfeited shall have been sold, re-allotted or otherwise disposed of, annul the forfeiture thereof upon such conditions as it thinks fit.
34. A person whose share has been forfeited shall cease to be a member in respect of the forfeited share, but shall, notwithstanding the forfeiture, remain liable to pay, and shall forthwith pay to the Company, all calls or installments, interest and expenses owing upon or in respect of such share, at the time of the forfeiture, together with interest thereon, from the time of forfeiture until payment, at the rate of 12 per cent per annum (or such other rates as the Board determines) and the Board may enforce the payment thereof, all any part thereof, without any deduction or allowance for the value of shares at the time of forfeiture, but shall not be under any obligation to do so.
35. The forfeiture of a share shall involve the extinction of all interest in and also of all claims and demand against the Company in respect of the share, and all other rights incidental to the share except only such of those rights as by these Articles are expressly saved.
36. A duly verified declaration in writing that the declarant is a Director or secretary of

the Company and that certain shares in the Company have been duly forfeited on a date stated in the declaration shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the shares and such declaration and the receipt of the Company for the consideration, if any, given for the shares on the sale or disposition thereof shall constitute a good title to such shares; and the person to whom any such share is sold shall be registered as the holder of such share and shall not be bound to see to application of the purchase money, nor shall his title to such share be affected by any irregularity or invalidity in the proceedings in reference to such forfeiture, sale or disposition.

37. The provisions of Articles 21 to 28 hereof shall apply in the case of non-payment of any sum which, by the terms of issue of a share, becomes payable at a fixed time (whether on account of the nominal value of a share or by way of premium) as if the same had been payable by virtue of a call duly made and notified.

38. The Company shall have a first and paramount lien upon every party paid-up share registered in the name of each member (whether solely or jointly with others) and upon and proceeds of sale thereof for all money (whether presently payable or not) called or payable at a fixed time in respect of such shares and no equitable interest in any share shall be created except upon the footing and condition that provisions of these Articles are to have full effect and such lien shall extend to all dividends from time to time declared in respect of such share. Unless otherwise agreed, the registration of a transfer of a share shall operate as a waiver of the Company's lien, if any, on such share.

Provided that the Board may, at any time declare any share to be wholly or in part exempt from the provisions of this clause.

39. No member shall exercise any voting right in respect of any shares registered in his name on which any calls or other sums, presently payable by him, have not been paid or in regard to which the Company has exercised any right of lien.

40. For the purpose of enforcing such lien the Board may sell the share subject thereto in such manner as it thinks fit, but no sale shall be made until such time for payment as aforesaid shall have elapsed and until notice in writing of the intention to sell shall have been served on such member, his executor or administrator or his committee, curator bonis or other legal representative as the case may be and default shall have been made by him or them in the payment of the moneys called or payable at a fixed time in respect of such shares for 14 days after the date of such notice.

41. The net proceeds of the sale shall be received by the Company and applied in or towards satisfaction of such part of the amount in respect of which the lien exists as is presently payable, and the residue, if any, shall (subject to a like lien for sums not presently payable as existed upon the share before the sale) be paid to the person entitled to the share at the date of the sale.

42. Upon any sale after forfeiture or for enforcing a lien in purported exercise of the powers by these presents given, the Board may appoint some person to execute an instrument of transfer of the share sold and cause the purchaser's name to be entered in the Register in respect of the shares sold and the purchaser shall not be bound to see to the regularity of the proceedings, nor to the application of purchase money and after his name has been entered in the Register in respect of such shares his title to such shares shall not be affected by any irregularity or invalidity in the proceedings in reference to such forfeiture, sale or disposition, nor impeached by any person and the remedy of any person aggrieved by the sale be in damage only and against the Company exclusively.

43. Where any share under the powers in that behalf herein contained is sold by the Board and the certificate in respect thereof has not been delivered up to the

Company by the former holder of such share, the Board may issue a new certificate for such share distinguishing it in such manner as it may think fit from the certificate not so delivered up.

TRANSFER AND TRANSMISSION

44. Save as provided in section 108 of the Act, no transfer of a share shall be registered unless a proper instrument of transfer duly stamped and executed by or on behalf of transferor and by or on behalf of the transferee has been delivered to the Company within the time prescribed by section 108 of the Act together with the certificate of shares or if no such certificate is in existence alongwith the letter of allotment of shares. The transferor shall be deemed to remain the holder of such share, until the name of the transferee is entered in the Register in respect thereof.
45. The Instrument of transfer of Shares shall be in form prescribed by the Act and / or Rules framed thereunder. It shall contain the name father / husband's name, address, occupation of the transferee. Each signature to such transfer shall be duly attested by the signature of one witness who shall add his address.
46. Application for the registration of the transfer of a share may be made either by the transferor or the transferee provided that, where such application is made by the transferor, no registration shall, in the case of a partly paid share, be effected unless the Company gives notice of the applications to the transferee in the manner prescribed by Section 110 of the Act, and subject to the provisions of these articles the Company shall unless objection is made by the transferee within two weeks from the date of receipt of the notice entered in the Register the name of the transferee in the same manner and subject to the same condition as if the application for registration of the transfer was made by the transferee.
47. Before registering any transfer tendered for registration the Company may, if it so thinks fit, give notice by letter posted in the ordinary course to registered holder that such transfer deed has been lodge and that unless objection is made the transfer will be registered and if such registered holder fails to lodge and objection in writing at the office of the Company within 10 days from the posting of such notice to him he shall be deemed to have admitted the validity of the said transfer. Where no notice is received by the registered holder, the company shall be deemed to have decided not to give notice and in any event the non-receipt by the register holder of any notice shall not entitle him to make any claim of any kind against the Company or the Board in respect of such non-receipt.
48. Neither the company nor its Board shall incur any liability for registering or effecting transfer of the share apparently made competent parties, although the same may be reasons of any fraud or other cause not known to the company or its Board, be legally inoperative or insufficient to pass the property in the shares proposed or professed to be transferred; and although the transfer may, as between the transferor and transferee, be liable to be set aside and notwithstanding that the company may have notice that such instrument of transfer was signed or excited and delivered by the transferor in blank as to the name of the transferee, or particular of the shares transferred; or otherwise in defective manner . In every such case the persons registered as transferee his executors, administrators or assigns alone shall be entitled to be recognised as the holder of such share and the previous holder of such share shall, so far as the company is concerned, be deemed to have transfered his whole title thereto.

49

Nomination by members:

"Subject to the provisions of the Companies Act, 1956 and rules prescribed therein, a member or may, at any time, nominate any person to whom his/her shares shall

vest in the event of his/her death". Provided further that the provisions relating to nomination shall mutatis mutandi apply in case of nomination by debenture-holders as well.'

50

Company's power to refuse transfer

"Nothing in these presents shall prejudice the powers of the Company to refuse to register the transfer of any shares subject to the provisions of the Act.'

51.

No transfer to minor

"No transfer shall be made to a minor or a person of unsound mind. However in respect of fully paid up shares, shares may be transferred in favor of minor acting through legal guardian, in accordance with the provisions of law."

52.

Every instrument of transfer shall be left at the office for registration, accompanied by the certificate of the share to be transferred or, if no such certificate is in existence, by the Letter of Allotment of the Share and such other evidence as the Board may require to prove the title of the transferor or his right to transfer the share. Every instrument of transfer which shall be retained by the Company and the transferee shall be registered as a member in respect of such shares, but any instrument of transfer which the Board may refuse to register, shall be returned to the person depositing the same. The Board may waive the production of any certificate upon evidence satisfactory to it of its loss or destruction.

53.

If the Board refuses whether in pursuance of these presents or otherwise to register the transfer of, or the transmission by operation of law of the right to, any share, the Company shall, within two months from the date on which the instrument of transfer or the intimation of such transmission, as the case may be, was lodged with the Company, send to the transferee and the transferor or to the person giving intimation of such transmission, as the case may be, notice of the refusal.

54.

No fee shall be charged for registration of transfer, grant of probate, grant of letters of administration, certificate of death or marriage, power of Attorney or other similar instruments.

55.

On giving seven day's notice by advertisement in a newspaper circulating in the District in which the Office of the Company is situated, the Register of Members may be closed and registration of transfers may be suspended during such time as the Board thinks fit not exceeding in the whole forty-five days in each year but not exceeding thirty days at a time.

56.

The executors or administrators or the holders of a succession certificate in respect of shares of a deceased member (not being one of several joint holders) shall be only person whom the Company shall recognise as having any title to shares registered in the name of such member and, in case of the death of any one or more of the joint holders of any registered shares, the survivors shall be the only persons recognised by the Company as having any title to or interest in such shares but nothing herein contained, shall be taken to release the estate of a deceased joint-holders from any liability on shares held by him jointly with any other person. Before recognising any executor or administrator or legal representative or heir or a person otherwise claiming title to the shares the Company may require him to obtain a grant of probate or letters of administration or succession certificate or other legal representation, as the case may be, from a competent Court; Provided nevertheless that in any case where the Board in its absolute discretion thinks fit, it may dispense with the production of probate or letters of administration or a succession certificate or such other legal representation upon such terms as to indemnity or otherwise as the Board may consider desirable.

57.

Any committee or guardian, curator bonis or other legal curator of a lunatic, idiot or

non compos mentis member or any person becoming entitled to or to transfer a share in consequence of the death or bankruptcy or insolvency of any member upon producing such evidence that he sustains the character in respect of which he proposes to act under this Article or of his title as the Board thinks sufficient, may, with the consent of the Board (which the Board shall not be bound to give), be registered as a member in respect of such share or may, subject to the regulations as to transfer hereinbefore contained, transfer such share. This Article is hereinafter referred to as "The Transmission Article".

58. If the person so becoming entitled to share under the Transmission Article shall elect to be registered as holder of the share himself, he shall deliver or send to the Company a notice in writing signed by him stating that he so elects. If he shall elect to transfer the shares to some other person he shall execute an instrument of transfer in accordance with the provisions of these Articles relating to transfer of shares. All the limitations, restrictions and provisions of these Articles relating to the right to transfer and the registration of transfer of shares shall be applicable to any such notice or transfer as aforesaid.

59. A person so becoming entitled under the Transmission Article shall, subject to the provisions of these Articles, be entitled to the same dividends and other advantages as he would be entitled to if he were the registered holder of the share except that he shall not, before being registered as a member in respect of the share, be entitled to exercise in respect thereof any right conferred by membership in relation to meetings of the Company.

Provided that the Board may at any time give notice requiring any such person to elect either to be registered himself or to transfer the share, and if the notice is not complied with within ninety days, the Board may thereafter withhold of all dividends, bonuses or other moneys payable in respect of the share, until the requirements of the notice have been complied with.

60. The Articles providing for the transfer and transmission of shares, shall mutatis mutandis apply to the transfer and transmissions of debentures of the Company.

Definition 61 :-

DEMATERIALIZATION OF SECURITIES

1) For the purpose of this Article

"Beneficial Owner" means a person or persons whose name is recorded as such with the Depository.

"Registered Owner" means Depository whose name is entered as such in the register of issuer.

"SEBI" means the Securities and Exchange Board of India.

"Depository" means a Company formed and registered under the Companies Act, 1956, and which has been granted a Certificate of Registration to act as Depository under the Securities and Exchange Board of India Act, 1992 and

"Security" means such security as may be specified by SEBI from time to time.

DEMATERIALIZATION OF SHARES

2) Notwithstanding anything contained in this Article, the Company shall be entitled to dematerialize its securities and to offer securities in a dematerialized form pursuant to the Depository Act, 1996.

OPTION FOR INVESTORS

- 3) Every person subscribed to securities offered by the Company shall have the option to receive security certificates or to hold the securities with a Depository. Such a person who is the Beneficial Owner of the securities can at any time opt out of a Depository in the manner provided by the Depositories Act, 1996 and the Company shall, in the manner and within the time prescribed, issued to the Beneficial Owner the required certificates of securities.

If a person opt to hold his security with a Depository, the Company shall intimate such Depository the details of allotment of the security, and on receipt of the information, the Depository shall enter in its record the name of the allottee as the Beneficial Owner of the security.

SECURITY IN DEPOSITORY TO BE IN FUNGIBLE FORM

- 4) All securities held by a Depository shall be dematerialized nothing contained in Section 153, 153A, 153B, 187B, 187C, and 372 of the Companies Act, 1956 shall apply to a Depository in respect of the securities held by it on behalf of the Beneficial Owner.

RIGHTS OF DEPOSITORIES AND BENEFICIAL OWNERS

- 5) a) Notwithstanding any thing to the contrary contained in the Act, or these Articles, a depository shall be deemed to be the Registered Owner for the purpose of the effecting transfer of ownership of security on behalf of the Beneficial Owner.
- b) Save as otherwise provided in (a) above, the Depository as the Registered Owner of the securities, shall not have any voting rights or any other rights in respect of the securities held by it.
- c) Every person holding Securities of the Company and whose name is entered as the Beneficial Owner in the records of the Depository, shall be deemed to be a member of the Company, the Beneficial Owner of securities shall be entitled to all the rights and benefits and be subject to all the liabilities in respect of his securities which are held by a Depository.

SERVICE OF DOCUMENTS

- 6) Notwithstanding anything contained in the Act or these Articles, where securities are held in a Depository, the records of the Beneficial Ownership may be served by such Depository on the Company by means of electronic mode or by delivery of floppies or discs.

TRANSFER OF SECURITIES

- 7) Nothing contained in Section 108 of the Act or these Articles shall apply to a transfer of Securities effected by a transferor and transferee, both of whom are entered as Beneficial Owners in the records of a Depository,

ALLOTMENT OF SECURITIES DEALT WITH IN A DEPOSITORY

- 8) Notwithstanding anything in the Act, or these Articles, where securities are dealt with by a Depository, the Company shall intimate the details thereof to the Depository immediately on allotment of such securities.

DISTINCTIVE NUMBER OF SECURITIES HELD IN A DEPOSITORY

- 9) Nothing contain in the Act, or these Articles regarding the necessity of having distinctive numbers for securities issued by the Company shall apply to securities held with a Depository,

REGISTER AND INDEX OF BENEFICIAL OWNERS

- 10) The Register and Index of Beneficial Owners maintained by a Depository under the Depositories Act, 1996 shall be deemed to be the Register and Index of Members and security holders for the purpose these Articles.

ALTERERATION OF CAPITAL

62. The Company may be ordinary Resolution from time to time :-
- a) Increase its Authorised Share Capital by creation of new shares of such amount as may be deemed expedient ;
 - b) Consolidate and divide all or any of its Share Capital into shares of larger amount than its existing shares ;
 - c) Subdivide its existing shares or any of them into shares of smaller amount than is fixed by the Memorandum, so however, that in the subdivision the proportion between the amount paid and the amount, if any, unpaid on each reduced share shall be the same as it was in the case of the share from which the reduced share is derived ; and
 - d) Cancel any share which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person and diminish the amount of its Share Capital by the amount of the shares so cancelled.
63. The resolution whereby any share is subdivided or consolidated may determine that, as between holders of the shares resulting from such subdivision or consolidation, one or more of such shares shall have some preference or special advantage as regards dividend, capital voting or otherwise over or as compared with the other or other subject nevertheless to the provisions of Sections 85,87,88,93, and 106 of the Act.
64. The Company may, by Special Resolution and subject to the provisions of Section 100 to 104 of the Act, reduce its Capital and Capital Redemption Reserve Account or Share Premium Account in any manner and subject to any incident authorised and consent required by law.
65. Subject to the provision of Section 100 to 104 inclusive of the Act, the Board may accept from any member the surrender of all or any of his shares on such terms and conditions as shall be agreed.

STOCKS

66. The Company may, by Ordinary Resolution, convert any paid-up shares into stock and reconvert any stock into paid-up shares of any denomination.
67. Where any share has been converted into stock the several holders of such stock may, thenceforth, transfer their respective interests therein or any part of such interests in the same manner, and subject to the same ebullitions, as would have applied to the transfer of shares from which the stock arose or as near thereto as the circumstances would admit. The Board may from time to time, fix the minimum amount of stock transferable, and restrict or forbid the transfer of fractions of that minimum but the minimum shall not exceed the nominal amount of the shares from which the stock arose.
68. The holders of stock shall, according to the amount of the stock held by them, have

the same rights, privileges and advantages as regards dividends, voting at meetings of the Company and other matters, as if they held the shares from which the stock arose, but no such privilege or advantage (except participation in the dividends and profits of the company) shall be conferred by any such part of stock as would not, if existing in shares, have conferred the privilege or advantage.

69. Such of the Articles of the Company (other than those relating to share warrants), as are applicable to paid-up shares shall apply to stock, and the words "share" and "shareholder" therein shall include "Stock" and "Stockholder" respectively.

SHARE WARRANTS

70. The Company may issue Share warrants subject to, and in accordance with the provisions of Sections 114 and 115, and accordingly the Board may in its discretion, with respect to any share which is fully paid up, on application in writing signed by the person registered as holder of the share and on receiving the share certificate (if any) and authenticated by such evidence (if any) as to the identity of such person and the amount of the stamp duty on the warrant and such fee as the Board may from time to time require, issue a share warrant.
71. (i) The bearer of a share warrant may at any time deposit the warrant at the office of the Company, and so long as the warrant remains so deposited, the depositor shall have the same right of signing a requisition for calling a meeting of the Company, and of attending and voting and exercising the other privileges of a member at any meeting held after the expiry of two clear days from the time of deposit, as if his name were inserted in the register of members as the holder of the shares included in the deposited warrant.
- (ii) Not more than one person shall be recognised as depositor of the share warrant.
- (iii) The Company shall, on two days' written notice, return the deposited share warrant, to the depositor.
72. (i) Subject as herein otherwise expressly provided, no person shall, as bearer of a share warrant, sign a requisition for calling a meeting of the company, or attend or vote or exercise any other privileges of a member at a meeting of the company, or be entitled to receive any notices from the company.
- (ii) The bearer of a share warrant shall be entitled in all other respects to the same privileges and advantages as if he were named in the register of members as the holder of the shares included in the warrant, and he shall be a member of the Company.
73. The Board may, from time to time, make rules as to the terms on which (if it shall think fit) a new share warrant or coupon may be issued by way of renewal in case of defacement, loss or destruction.

LOANS AND DEBENTURE

74. The Board may, from time to time, at its discretion, subject to the provisions of Section 58A, 292 and 293 of the Act, raise or borrow from the Directors or from elsewhere and secure the payment of any sum or sums of money for the purposes of the Company; provided that the Board shall not, without the sanction of the Company in general meeting, borrow any sum of money which together with moneys already borrowed by the Company (apart from temporary loans obtained from Company's bankers in the ordinary course of business) will exceed the aggregate for the time being of the paid-up capital of the Company and its free reserves, that is to say, reserves not set aside for any specific purpose.
75. The Board may raise or secure the repayment of such sum or sums in such manner and upon such terms and conditions in all respect as it thinks fit, and in particular by

issue of bonds, notes perpetual or redeemable debentures or debenture-stock or any mortgage, charge or other security on the undertaking of the whole or any part of the property of the company (both present and future), but shall not create a charge on its uncalled capital for the time being without the sanction of the Company in the General Meeting.

76. If any uncalled Capital of the Company is included in or charged by any mortgage or other security, the Board may by instrument under the Seal authorise the person in whose favour such mortgage or security is executed or any other person in trust for him to collect money in respect of calls made by the Board on members in respect of such uncalled capital and the provisions hereinbefore contained in regard to call shall mutatis mutandis apply to calls made under such authority; and such authority may be made exercisable either conditionally or unconditionally, either presently or contingently and either to the exclusion of the Directors power or otherwise and shall be assignable if expressed so to be.
77. Any debentures, debenture-stock, bonds, and other securities may be issued at a discount, premium or otherwise and with any special privileges as to redemption, surrender, drawings, allotment of or conversion into shares, appointment of Directors and otherwise subject to the provisions of Article 6 hereinbefore contained. Debentures, debenture-stock, bonds and other securities may be made assignable free from any equity between the Company and the person to whom the same may be issued.
78. The Directors or any of them may guarantee the whole or any part of the loans or debts raised or incurred by or on behalf of the Company or any interest payable thereon, and shall be entitled to receive such payment as consideration for the giving of any such guarantee as may be determined by the Board with power to it to indemnify the guarantors from or against liability under their guarantees by means of a mortgage or charge on the undertaking of the Company or upon any of its property or assets or otherwise. If the Directors or any of them or any other persons, shall become personally liable for the payment of any sum primarily due from the Company, the Directors may execute or cause to be executed any mortgage, charge or security over or affecting the whole or any part of the Assets of the Company by way of indemnity to secure the Directors or persons so becoming liable as aforesaid from any loss in respect of such liability.

GENERAL MEETINGS

79. In addition to any other meetings, general meetings of the Company shall be held within such intervals as are specified in Section 166(1) of the Act and subject to the provisions of Section 166(2) of the Act at such times and places as may be determined by the Board. Each such general meeting shall be called an "Annual general meeting" and shall be specified as such in the notice convening the meeting. Any other meeting of the Company except the statutory meeting convened under the provisions of next following Article, shall be called as "Extra ordinary general meeting".
80. A general meeting of the Company, which shall be called the Statutory Meeting, shall be held within period as is specified in Section 165(1) of the Act at such time and place as may be determined by the Board, who shall comply with all the requirements of Section 165 of the Act.
81. The Board may, whenever it thinks fit, call an Extra-ordinary General Meeting provided however if at any time there are not in India Directors capable of acting who are sufficient in number to form a quorum, any Directors may call an Extra-ordinary General Meeting in the same manner, as nearly as possible, as that in which such a meeting may be called by the Board. The Board shall on requisition of the members in accordance with Section 169 of the Act proceed to call an Extra-ordinary General Meeting. The requisitionists may, in default of the Board convening the same, convene the Extra-ordinary General Meeting as provided by

Section 169 of the Act in the manner as is specified in that Section.

PROCEEDINGS AT GENERAL MEETING

82. No business shall be transacted at any general meeting unless a quorum of members, which shall be five members present in person save as herein otherwise provided, is present at the time when the meeting proceeds to business.
83. The Chairman of the Board shall be entitled to take the chair at every general meeting. If there be no such Chairman, or if at any meeting he shall not be present within fifteen minutes after the time appointed for holding such meeting, or is unwilling to act the members present shall choose another Directors as Chairman, and if no Directors present, or if all the Directors present decline to take the chair, then the members present shall, on a show of hands or on a poll if properly demanded, elect one of their member, being a member entitled to vote, to be Chairman of the meeting.
84. If within half an hour from the time appointed for the meeting a quorum be not present, the meeting if convened upon a requisition of shareholders shall be dissolved but in any other case it shall stand adjourned to the same day in the next week at the same time and place, unless the same shall be a public holiday when the meeting shall stand adjourned to the next day not being a public holiday at the same time and place or to such other day and at such other time and place as the board may determine and if at such adjourned meeting a quorum be not present within half an hour from the time appointed for the meeting, those members who are present and not being less than two persons shall be a quorum and may transact the business for which the meeting was called.
85. (i) The Chairman of a general meeting may adjourn the same from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.
- (ii) When a meeting is adjourned for thirty days or more, or in case of a meeting adjourned for want of quorum when a Board determines a different day, time and place than as would have been determined automatically by virtue of Article 74, notice of the adjourned meeting shall be given in the same manner as in the case of an original meeting, but otherwise it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.
86. In the case of an equality of votes, the Chairman shall, both on a show of hands and on a poll, have a casting vote in addition to the vote or votes to which he may be entitled as a member.
87. Any act of or resolution which, under the provisions of these Articles or of the Act, is permitted or required to be done or passed by the Company in general meeting shall be sufficiently so done or passed is effected by an Ordinary Resolution as defined in Section 189(1) of the Act unless either the Act or these Articles specifically require such act to be done or resolution passed by a Special Resolution as defined in Section 189(2) of the Act.
88. The demand of a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which a poll has been demanded.

VOTES OF MEMBERS

89. (i) Save as herein provided on a show of hands every member present in person and being a holder of Equity Shares shall have one vote and every person present either as a Proxy on behalf of a holder of Equity Shares or as a duly authorised representative of a body corporate (being a holder of Equity Shares). If he is not

entitled to vote in his own right, shall have one vote.

- (ii) Save as herein provided, on a poll the voting rights of a holder of Equity Shares shall be as specified in Section 87 of the Act.

Provided that no company or body corporate shall vote by proxy so long as a resolution of its board of directors under the provisions of Section 187 of the Act is in force and the representative named in such resolution is present at the general meeting at which the vote by proxy is tendered.

- (iii) The Company may pass any resolutions by Postal Ballot in the manner prescribed by section 192A of the Act. Provided however that, the Company, shall, in the case of resolution relating to such business, as the Central Government may, by notification declare to be conducted only by postal ballot, get such resolution passed by means of a postal ballot instead of transacting the business in a general meeting of the Company.

90. Where a company or a body corporate (hereinafter called "member company") is a member of the Company, a person, duly appointed by resolution in accordance with the provisions of Section 187 of the Act to represent such member company at a meeting of the Company, shall not, by reason of such appointment, be deemed to be a proxy, and the lodging with the Company at the Office or production at the meeting of a copy of such resolution duly signed by one Director of such member company and certified by him as being a true copy of the resolution shall be accepted by the Company as sufficient evidence of the validity of his appointment. Such a person shall be entitled to exercise the same rights and powers, including the right to vote by proxy on behalf of the member company which he represents, as that member company could exercise if it were an individual member.

91. If any member be a lunatic, idiot or non compos mentis, he may vote whether on a show of hands or at a poll by his committee, curator bonis or other legal curator and such last mentioned persons may give their votes by proxy provided that forty-eight hours at least before the time of holding the meeting or adjourned meeting, as the case may be, at which any such person proposes to vote he shall satisfy the Board of

his right under the Transmission Article to the share in respect of which he proposes to exercise his right under these articles, unless the Board shall have previously admitted his right to vote at such meeting in respect thereof.

92. Where there are joint registered holders of any share any one of such persons may vote at any meeting either personally or by proxy in respect of such share as if he were solely entitled thereto; and if more than one of such joint-holders be present at any meeting either personally or by proxy, that one of the said persons so present whose name stands first on the Register in respect of such share alone shall be entitled to vote in respect thereof. Several executors or administrators of a deceased member in whose name any share is registered shall for the purposes of this Article be deemed joint-holders thereof.

93. The instrument appointing a proxy shall be in writing under the hand of the appointee or of his Attorney duly authorised in writing or if such appointee is a body corporate be under its common seal or the hand of its officer or Attorney duly authorised.

94. The instrument appointing a proxy and a power of Attorney or other authority (if any) under which it is signed, or a notarially certified copy of that power or authority, shall be deposited at the Office not less than forty-eight hours before the time for holding the meeting at which the person named in the instrument purports to vote in respect thereof and in default the instrument of proxy shall not be treated as valid.

95. A vote given in accordance with the terms of an instrument appointing a proxy shall be valid notwithstanding the previously death or insanity of the principal, or

revocation of the instrument, or transfer of the share in respect of which the vote is given, provided no intimation in writing of the death, insanity, revocation or transfer of the share shall have been received by the Company at the office or by the Chairman of the meeting before the vote is given. Provided nevertheless that the Chairman of the meeting shall be entitled to require such evidence as he may in his discretion think fit of the due execution of an instrument of proxy and that the same has not been revoked.

96. Every instrument appointing a proxy shall, as nearly as circumstances will admit be in either of the forms set out in Schedule IX to the Act.
97. No member shall be entitled to exercise any voting rights either personally or by proxy at a meeting of the company or be reckoned in a quorum whilst in respect of any shares registered in his name on which any calls or other sums presently payable by him have not been paid or in regard to which the company has, and has exercised any right of lien.
98. (i) Any objection as to the admission or rejection of a vote, either, on a show of hands, or on a poll made in due time, shall be referred to the Chairman who shall forthwith determine the same, and such determination made in good faith shall be final and conclusive.
- (ii) No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered and every vote not disallowed at such meeting shall be valid for all purpose.

DIRECTORS

(i) GENERAL PROVISIONS

99. Until otherwise determined by the company in General Meeting the number of directors shall not be less than three nor more than twenty.
100. Subject to the provisions of Section 255 Act not less than two thirds of the total number of Directors shall be persons whose period of office is liable to determination by retirement of Directors by rotation, who shall be appointed in terms of Section 255, 256, 257, 260 and/or 262 of the Act.
101. The First Directors shall be

i) SRI BASANT KUMAR AGRAWAL

ii) SRI SURESH KUMAR AGRAWAL

iii) SRI ADITYA B MANAKSIA

102. Unless otherwise determined by the Company in General Meeting, directors shall not be required to hold any share in the Capital of the Company as qualification share but nevertheless shall be entitled to attend and speak at any General Meeting of the Company and separate meeting of the holder of any class of shares in the Company.
103. (i) Subject to the provisions of the Act, each director shall be entitled to receive out of the funds of the Company by way of remuneration for his services in attending meeting of the Board or a Committee of the Board for each such meeting attended by him, such fees as may be specified by the Board of Directors from time to time. The Directors may waive their fee for any meeting or period."
- (ii) The Directors shall also be entitled to received further rumination by way of commission at the rate of 3% (1% if the Company has a managing or whole - time Directors or a manager) of the net profits of the Company computed in the manner referred to in Section 198(i) of the Act and such remuneration shall be divided amongst Directors in such proportion and manner as the Board may, from time to

time determine and in default of such determination shall be divided amongst the Directors equally.

- (iii) The Directors shall be entitled to be paid all fees for filing documents, which they may be required of file under the Act.
- (iv) The Directors shall be entitled to be paid their reasonable travelling, hotel, and other expenses incurred in consequence of their attending at Board and Committee Meetings and General Meetings of the Company or otherwise incurred in the execution of their duties as Directors and / or in connection with the business of the Company. If any Director, being willing, is appointed to an executive office either whole-time or part-time or is called upon to perform extra services or to make any special exertions for any of the purposes of the Company or in giving special attention to the business of the Company or as a member of a Committee of the Board then, subject to the provisions of the Act, the Board may remunerate the Director so doing either by a fixed sum or by a percentage of profit or both or in any other manner as may be determined by it and such remuneration may be either in addition to or in substitution for any other remuneration to which he may be entitled.

- 104. The remuneration of the Directors shall, in so far as it consists of a monthly payment, be deemed to accrue from day to day.
- 105. The continuing Directors shall, may act notwithstanding any vacancy in their body; but so that if the number falls below the minimum above fixed the Board shall not, except for the purpose of filling vacancies or of summoning a General Meeting, act so long as the number is below the minimum.
- 106. Subject to the provisions of Section 297 of the Act neither shall a Director be disqualified by reason of his office as such from holding office under the Company nor from contracting with the Company either as a vendor, purchaser or otherwise for goods, materials or services or for underwriting the subscription of any shares in or debentures of the Company or as lender, agent, broker, lessor, lessee or otherwise nor shall any such contract or arrangement entered into by or on behalf of the Company with a relative of such Director, or a firm in which such Director or relative is a partner or with any other partner in such firm or with a private Company of which such Director is a member or Director, be void nor shall any Director so contracting or being so interested be liable to account to the Company for any profit realised by any such contract or arrangement by reason of such Director holding office or of the fiduciary relation thereby established.
- 107. Every Director who is in any way, whether directly or indirectly, concerned or interested in a contract or arrangement, entered into or to be entered into, by or behalf of the Company not being a contract or arrangement entered into or to be entered into between the Company and any other Company where any of the Directors of the Company or two or more of them together holds or hold not more than two percent of the paid up share capital in the other Company shall disclose the nature of his concern or interest at a meeting of the Board as required by Section 299 of the Act. A General Notice, renewable in the last month of each financial year of the Company, that a Director is a director or a member of any specified body corporate or is a member of any specified firm and is to be regarded as concerned or interested in any subsequent contract or arrangement with that body corporate or firm shall be sufficient disclosure of concern or interest in relation to any contract or arrangement so made and, after such general notice, it shall not be necessary to give special notice relating to any particular contract or arrangement with such body corporate or firm, provided such general notice is given at a meeting of the Board or the Director concerned takes reasonable steps to secure that it is brought up and read at the first meeting of the Board after it is given. Every Director shall be bound to

give and from time to time renew a general notice as aforesaid in respect of all bodies corporate of which he is a Director or member and of all firms of which is a member.

(ii) APPOINTMENT AND RETIREMENT OF DIRECTORS

108. The Company in General Meeting may, subject to the provisions of these Articles and the Act, at any time elect any person to be a Director and may from time to time increase or reduce the number of Directors.
109. The Board shall have power, at any time and from time to time, to appoint any person (other than a person who has been removed from the office of a Director of the Company) as a Director as an addition to the Board but so that the total number of Directors shall not at any time exceed the maximum number fixed by these Articles. Any Director so appointed shall hold office only until the next Annual General Meeting of the Company and shall then be eligible for re-appointment.
110. If the office of any Director appointed by the Company in general Meeting be vacated before his term of office will expire in the normal course, the Board at a meeting of the Board may fill the resulting casual vacancy. Any person so appointed shall hold office only upto the date upto which the director is whose place he is appointed would have held office if it had not been vacated as aforesaid.
111. The Board may appoint any person to act as Alternate Director to act for a Director during this absence for a period of not less than three months from the state in which meeting of the Board are ordinarily held and the Alternate Director so appointed shall not hold office as such for longer period than that permissible to the original Director in whose place he has been appointed and shall vacate the office if and when the original Director returns to the State. The Alternate Director shall be entitled to notice of the meeting of the Board and to attend and vote there at accordingly, but he shall not be required to hold any qualification share, if any.
112. (i) The Company shall, subject to the provisions of the Act, be entitled to agree with any person, firm, corporation, government or authority that he or it shall have the right to appoint his or its nominee on the Board of Directors of the Company upon such terms and conditions as the Board may deem fit. Such nominees and their successors in office appointed under this Articles shall be called Special Directors. If so agreed by the Company Special Directors shall be entitled to hold office until requested to retire by the person, firm, corporation government or authority who may have appointed him/them and will not be bound to retire by rotation. A Special Director shall not be required to hold any qualification shares, if any. As and whenever a Special Director vacates office whether upon request as aforesaid or by death, resignation or otherwise, the person, firm, corporation, government or authority who appointed such Special Director may appoint any other Director in his place. The Special Director may at any time by notice in writing to the Company resign his office. Subject as aforesaid, a Special Director shall be entitled to the same rights and privileges and be subject to the same obligations as any other Director of the Company.
- (ii) Whenever the Company enters into a contract with any person or persons for borrowing any money or for providing any guarantee or security or for technical collaboration or assistance or enter into any other arrangement, the Board shall have, subject to the provisions of Section 255 of the Act, the power to agree that such person or persons shall have the right to appoint or nominate, by a notice in writing addressed to the Company, one or more directors on the Board for such period and upon such conditions as may be mentioned in the agreement and that such Director or Directors may not be liable to retire by rotation nor be required to hold any qualification shares, Such Directors may also be removed from time to time by the person or persons aforesaid, who may appoint another or others in his or their place and also fill in any vacancy, which may occur as a result of any such Director or Directors ceasing to hold that office for any reason whatsoever. The

Director appointed or nominated under this Article shall be entitled to exercise and enjoy all or any of the rights and privileges exercised and enjoyed by the directors of the company including the payment of remuneration and travelling experiences to such director or directors as may be agreed by the company with such person or persons aforesaid.

- (iii) Any Trust Deed for securing debentures or debenture-stock may, if so arranged, provide for the appointment, from time to time by the Trustees thereof or by the holders of debentures or debenture-stocks, of some person to be a Director or Directors of the Company and may empower such Trustees or holders of debentures or herein referred to as "Debenture Director" and the term "Debenture Director" means the Director for the time being in office under this Article. The Debenture Director(s) shall not be bound to hold in qualification shares and shall not be liable to retire by rotation or be removed by the Company. The Trust deed may contain such ancillary provisions as may be arranged between the Company and Trustees and all such provisions shall have effect notwithstanding any of the other provisions herein contained.
- (iv) Notwithstanding anything to the contrary contained in these Article, so long as any moneys remain owing by the Company to The Industrial credit and investment corporation of India limited (ICICI), The Industrial Development Bank of India (IDBI), Industrial Finance Corporation of India (IFCI), Life Insurance Corporation of India (LIC), General Insurance Corporation of India (GIC) and Unit Trust of India (UTI) or to any other Finance Corporation or Credit Corporation or to any other Finance Company Body out of any loans granted by them to the Company or so long as ICICI, IDBI, IFCI, LIC, GIC, UTI or any other Finance Corporation or Credit Corporation or any other Finance Company or body (each of which ICICI, IDBI, IFCI, LIC, GIC, and UTI or any other Finance Corporation or Credit Corporation or any other Finance Company or Body is hereinafter in this Article referred to as ("the Corporation")) continue to hold Debentures in the Company or so long as the Corporation holds shares in the Company as a result of underwriting or so long as any liability of the Company arising out of any guarantee furnished by the Corporation on behalf of the Company remains outstanding, the Corporation shall have a right in accordance with the terms and conditions of agreement, if any, between the Company and the Corporation, to appoint from time to time, any person or persons as a Director or Directors whole time or non-whole time, (which Director or Directors is/are hereinafter referred to as "nominee Director/s") on the Board of the Company and to remove from such office any person or persons so appointed and to appoint any person or persons in his or their place/s. The Board of Directors of the Company shall have no power to remove from office the Nominee Director/s. At the option of the Corporation such nominee Director/s shall not be required to hold any share Qualification in the Company. Also at the option of the Corporation such nominee Director/s shall not be liable to retirement by rotation of Directors. Subject as aforesaid the nominee Director/s shall be entitled to the same rights and privileges and be subject to the same obligations as any other Director of the Company. The Nominee Director/s so appointed shall hold the said of his only so long as moneys remain owing by the Company to the Corporation or so long as the Corporation holds Debentures or Shares in the Company or the Liability of the Company arising out of any Guarantee furnished by the Corporation on behalf of the Company is outstanding and the Nominee Director/s so appointed in exercise of the said power shall ipso facto vacate such office immediately the moneys owing by the Company to the Corporation is paid off or on the Corporation ceasing to hold Debentures/shares acquired in the manner referred hereinabove in the Company or on the satisfaction of Liability of the Company arising out of any Guarantee furnished by the Corporation.

The Nominee Director/s appointed under this Article shall be entitled to receive all notices of and attend all General Meetings, Board Meetings and Meetings of the Committee, of which the Nominee Director/s is/are member/s and shall also be entitled to receive the minutes of such meetings. The Corporation shall also be entitled to receive the minutes of such meetings. The Corporation shall also be

entitled to receive all such notices minutes.

The Company shall pay to the Nominee Director/s sitting fees and expenses to which the other Directors of the Company are entitled, but if any other fees, commission, moneys or remuneration in any form is payable to the Directors of the Company the fees commission, moneys and remuneration in relation to such Nominee Director/s shall accrue to the Corporation and the same shall accordingly be paid by the Company directly to the Corporation. Any expenses that may be incurred by the Directorship shall also be paid or reimbursed by the Company to the Corporation or as the case may be, to such Nominee Director/s.

Provided that if any such Nominee Director/s is/are officer/s of the Corporation, the sitting fees in relation to such Nominee Director/s shall accrue to the Corporation and the same shall accordingly be paid by the Company directly to the Corporation.

Provided also that in the event of the Nominee Director/s being appointed as whole time Director/s such Nominee Director/s shall exercise such powers and duties as may be approved by the Corporation and have such rights as are usually exercised by or available to the hold time Director/s in the management of the Company. Such Nominee Director/s shall be entitled to receive such remuneration, fees, commission and moneys as may be approved by the Corporation.

113. At each Annual General Meeting of the Company one third of the Directors for the time being liable to retire by rotation and if their number is not three or a multiple of three then the number nearest there to shall retire from office. The Directors to retire at such Annual General Meeting shall be the Directors (other than Managing Director and or any other director or directors appointed or nominated under Article 102 hereof, who are not liable to retire) who shall have been longest in office since their last election. As between Directors who became Directors on the same day those to retire shall (in default of agreement between them) be determined by lot. For the purpose of this Article a Director appointed to fill a vacancy under the provisions of Article 100, shall be deemed to have been in office since the date on which the Director in whose place he was appointed was last elected as a Director.

114. The Office of a Director shall be deemed to have been vacated :

- a) If so facto, in the eventualities mentioned in Section 283 of the Act ;
- b) In the event of the resignation by a Director or the withdrawal of his nomination in the case of a Director appointed or nominated under Article 102 hereof on the date on which the letter of resignation or the letter of withdrawal of his nomination, as the case may be, is received by the Company.

(iii) PROCEEDINGS OF THE BOARD

115. The Board shall meet together at least once in every three months for the despatch of business and may adjourn and otherwise regulate its meetings and proceedings, as it thinks fit; provided that at least four such meetings shall be held in every year. Notice in writing of every meeting of the Board shall be given to every Director. The meetings of the Board shall be held at such place and at such time and date as may be mentioned in the notice calling the meeting. Provided that meeting of the Board or that of any Committee of the Board may also be conducted by video conferencing subject to applicable rules and regulations. The provisions relating to convening of physical board meeting as contained in these Articles shall mutatis mutandi apply in case of convening of meetings by video conferencing.

116. A Director may, at any time and, the Secretary shall upon the request of a Director made at any time, convene a meeting of the Board

117. The Board may elect a chairman of its meetings and determine the period for which he is to hold office. If no such chairman is elected, or if at any meeting the chairman

is not present within fifteen minutes after the time appointed for holding the meeting, the directors present may choose one of their member to be the chairman of the meeting.

118. The quorum for a meeting of the Board shall be determined from time to time in accordance with the provisions of Section 287 of the Act. If a quorum shall not be present within fifteen minutes from the time appointed for holding a meeting of the Board, it shall, unless the chairman adjourns it until an appointed date and time otherwise, automatically stand adjourned till the same day in the next week, at the same time and place, as if that day is public holiday, till the next succeeding day which is not a public holiday at the same time and place.
119. A meeting of the Board at which a quorum is present shall be competent to exercise all or any of the authorities, powers and discretion's by or under these articles or the Act for the time being vested in or exercisable by the Board. Provided that members participating in the meeting through video conferencing shall form part of valid quorum for transacting any business at the said meeting.
120. Subject to the provision of the Act, questions arising at any meeting shall be decided by a majority of votes, each Director having one vote, and in case of an equality of votes, the Chairman shall have a second or casting vote.
121. The Board may, subject to the provisions of the Act, from time to time and at any time, delegate any of its powers to a Committee consisting of such Director or Directors as it thinks fit and may, from time to time, revoke such delegation. Any Committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may from time to time be imposed upon it by the Board. The meetings and proceedings of any such Committee consisting of two or more members shall be governed by the provisions herein contained for regulating the meetings and proceedings of the Board so far as the same are applicable thereto, and are not superseded by any regulations made by the Board under this article.
122. All acts done by any meeting of the Board or of a committee thereof or by any person acting as a Director shall, notwithstanding that it may afterwards be discovered that there was some defect in the appointment of any such directors, committee or person acting as aforesaid or that they or any of them were disqualified or that his appointment had been terminated by virtue of any provisions contained in the Act or in these Articles, be as valid as if every such appointment was duly made and every such person was duly qualified. Provided always that nothing in this Article shall be deemed to give validity to acts done by such director, committee or person acting as aforesaid after it has been shown that there was some defect in any appointment or that they or any of them were disqualified or that their appointment had been terminated.
123. Save in those cases where a resolution is required by the Act (particularly by Section 262, 292, 297, 316, 372(5) and 386 of the Act) to be passed at a meeting of the Board, a resolution shall be as valid and effectual as if it had been passed at a meeting of the Board or Committee of the Board, as the case may be, duly called and constituted, if a draft thereof in writing is circulated, together with the necessary papers, if any, to all the Directors, or to all the members of the Committee of the Board, as the case may be then in India (not being less in number than the quorum fixed for a meeting of the Board or Committee, as the case may be) and to all other Directors or members of the Committee at their usual address in India, and has been approved by such of them as are then in India or by a majority of such of them as are entitled to vote on the resolution.
124. Subject to the provisions of the Act the Control of the Company shall be vested in the Board who shall be entitled to exercise all such powers, and to do all such acts and things as the Company is authorised to exercise and do in addition to the powers and authorities by these presents or otherwise expressly conferred upon them. Provided that the Board shall not exercise any power or do any act or thing

which is directed or required, whether by the Act, or any other statute or by the Memorandum of the Company or by these Articles or otherwise to be exercised or done by the Company in General Meeting. Provided further that in the exercising any such power or doing any such act or thing. The Board shall be subject to the provisions in the behalf contained in the Act or any other statute or in the Memorandum of the Company or in these Articles, or in any regulations not inconsistent therewith and duly made thereunder, including regulation made by the Company in general meeting, but no regulation made by the Company in general meeting shall invalidate any prior act of the Board which would have been valid if that regulation had not been made.

iv) POWERS OF THE BOARD

125.

Without prejudice to the general powers conferred by the last proceeding Article and so as not in any way to limit or restrict these powers, and without prejudice to the other powers conferred by these Articles, it is hereby declared that the Directors shall have the following powers, that is to say, power :

- (i) To pay the costs, charges and expenses preliminary and incidental to the promotion, formation, establishment and registration of the Company.
- (ii) To pay and charge to the capital account of the Company any commission or interest lawfully payable thereout under the provisions of section 76 and 208 of the Act.
- (iii) Subject to Sections 292 and 297 of the Act to purchase or otherwise acquire for the Company any property, rights or privileges which the Company is authorised to acquire at or for such price or consideration and generally on such terms and conditions as they may think fit, and in any such purchase or other acquisition to accept such title as the Directors may believe or may be advised to be reasonably satisfactory.
- (iv) At their discretion and subject to the provisions of the Act to pay for any property, rights or privileges acquired by or services rendered to the Company, either wholly or partially, in cash or in shares, bonds, debentures, mortgages or other securities of the Company; and any such shares may be issued either as fully paid up or with such amount credited as paid up thereon as may be agreed upon; and any such bonds, debentures, mortgages or other securities may be either specifically charged upon all or any part of the property of the Company and its uncalled capital or not so charged.
- (v) To secure the fulfillment of any contracts or arrangement entered into by the Company by mortgage or charge of all or any of the property of the Company and its uncalled capital for the time being or in such manner, as they may think fit.
- (vi) To accept from any Member, as far as may be permissible by law, a surrender of his shares or any part thereof, on such terms and conditions as shall be agreed.
- (vii) To appoint any person to accept and hold in trust for the Company any property belonging to the Company or in which it is interested or for any other purposes; and to execute and do all such deeds and things as may be required in relation to any such trust and to provide for the remuneration of such trustee or trustees.
- (viii) To institute, conduct, defend, compound or abandon any legal proceedings by or against the Company or its officers or otherwise concerning the affairs of the Company and also to compound and allow time for payment or a = satisfaction of any debts due and of any claims or demands by or against the company and to refer any difference to arbitration and observe and perform any awards made thereon.

- (ix) To act on behalf of the Company in all matters relating to bankrupts and insolvents.
- (x) To make and give receipts, releases, and other discharges for moneys payable to the Company and for the claims and demands of the Company.
- (xi) Subject to the provisions of Section 292, 293(1) (c), 295, 396, 370, 372 and 373 of the Act, to invest and deal with any moneys of the Company not immediately required for the purpose thereof upon such security (not being shares of this Company) without security and in such manner as they may think fit, and from time to time to vary or realise such investments. Save as provided in Section 49 of the Act, all investments shall be made and held in the Company's own name.
- (xii) To execute in the name and on behalf of the Company in favour of any Director or other person who may incur or be about to incur any personal liability whether as principal or security for benefit of the Company such mortgages of the Company's property (present and future) as they think fit, any such mortgage made contain a power of sale and such other powers provisions, covenants and agreements as shall be agreed upon.
- (xiii) To determine from time to time who shall be entitled to sign on the Company's behalf bills, notes, receipts, acceptances, endorsements, cheques dividend warrants, releases, contracts and documents and to give the necessary authority for such purpose.
- (xiv) To distribute by way of bonus amongst the staff of the company a share or shares in the profits of the company, and to give to any officer or other persons employed by the company a commission on the profits of any particular business or transaction; and to charge such bonus or commissions as part of the working expenses of the company.
- (xv) To provide for the welfare of Directors or ex-Directors or employees or ex-employees of the company and the wives, widows and families or the dependents or connections of such persons, by building or contribution to the building of houses, dwellings or chawls, or by grants of money, pensions, gratuities, allowances, bonus or other payments; or by creating and from time to time subscribing or contributing to provident and other associations, institutions, funds or trusts and by providing or subscribing or contributing towards places of instructions and recreation, hospitals and dispensaries, medical and other attendance, and other assistance as the board shall think fit; and subject to the provisions of section 293(i) (e) of the Act. To subscribe or contribute or otherwise to assist or to guarantee money to charitable benevolent, religious, scientific, national or other institutions or objects which shall have any moral or other claim to support or aid by the company, either by reason of locality of operation, or of public and general utility or otherwise.
- (xvi) Before recommending any dividend to set aside, out of the profits of the company such sums as they may think proper for depreciation or to a Depreciation Fund or to an Insurance Fund or as a reserve fund or Sinking Fund or any special fund to meet contingencies or to repay debentures or Debenture – Stock, or for special dividends or for equalising dividends or for repairing, improving, extending and maintaining any of the property of the company and for such other purposes (including the purposes referred to in preceding clause) as the Board may, in their absolute discretion, think conducive to the interest of the company, and subject to section 292 of the Act, to invest the several sums so set aside or so much thereof as require to be invested, upon such investments (other than shares of the company) as they may think fit, and from time to time to deal with and vary such investments and dispose of an apply and expend all or any part thereof for the benefit of the company, in such manner and for such purposes as the Board, in their absolute discretion, think conducive to the interest of the company notwithstanding that the matters to which the Board apply or upon which they expend the same, or any part thereof, may be matters to or upon which the capital moneys of the company might rightly be applied or expended, and to divide the Reserve Fund into such special

funds as the Board may think fit, with full power to transfer the whole or any portion of a Reserve Fund or division of a Reserve Fund to another reserve fund or division of a Reserve Fund and with full power to employ the assets constituting all or any of the above fund, including the Depreciation Fund, in business of the company or in the purchase or repayment of debentures or Debenture Stock and without being bound to keep the same separate from the other assets and without being bound to pay interest on the same with power however to the Board at their discretion to pay or allowed to the credit of such funds interest at such rate as the Board may think proper.

- (xvii) To appoint and at their discretion remove or suspend such general managers, managers, secretaries, assistants, supervisors, clerks agents and servants for permanent temporary or special services as they may for time to time think fit, and to determine their powers and duties, and fix their salaries for emoluments or remuneration and to require security in such instance and to such amount as they may think fit. And also from time to time to provide for the management and transaction of the affairs of the Company in any specified locality in India or elsewhere in such manner as they think fit; and the provisions contained in the four next following sub-clauses shall be without prejudice to the general power conferred by this sub-clause.
- (xviii) To comply with the requirement of any local law which in their opinion it shall in the interest of the company be necessary to expedient to comply with.
- (xix) From time to time and at any time to establish any Local officer and a local Brand for managing any of the affairs of the company in any specified locality in India or elsewhere and to appoint any persons to be Members of such local boards or Managers to fix their remuneration.
- (xx) Subject to Section 292 of the Act, from time to time, and at any time to delegate to any persons so appointed any of the powers authorities and discretions for the time being vested in the board, other than their power to make calls or to make loans borrows moneys; and to authories the Members for the time being of any such Local Board, or any of them to fill up any vacancies therein and to act notwithstanding vacancies; and any such appointment or delegations may be made on such terns, and subject to such conditions as the Board may think fit, and the Board may at any time remove any person so appointed may any annual or vary any such delegation.
- (xxi) At any time from time to time by power of Attorney under the seal of the Company, to appoint any persons or persons to be the Attorney or Attorneys of the Company, for such purposes and with such powers, authorities, and discretions (not exceeding those vested in or exercisable by the Board under these presents and excluding the power to make calls and excluding also except in their limits authorised by the Board the power to made loans and borrow moneys) and for such period and subject to such conditions as the Board may from time to time think fit, and any such appointment may (if the Board think fit) be made in favor the members or any of the Members of any Local Board established as aforesaid or in favor of any company, or share holders, directors, nominees or managers or any company or firm or otherwise in favor of any fluctuating Body of persons whether nominated directly or indirectly by the Board and any such power of attorney may contain such power for the protection or convenience of persons dealing with such attorneys as the Board may think fit, and may contain powers enabling and such delegates or Attorney as aforesaid to sub, delegate all or any of the powers authorities and discretion's for the time being vested in them.
- (xxii) Subject to section 294, 294AA, 297 & 300 of the Act, for or in relation to any of the matters aforesaid or otherwise for the purpose of the Company to enter into all such negotiations and contracts and rescind and vary all such contracts, and execute and do all such acts, deeds and things in the name and on behalf of the Company as they may consider expedient.

- (xxiii) From time to time to make, vary and repeal by – laws for the regulation of the business of the company its officers and servants.

126. The Company may exercise the powers conferred by Section 50 of the Act with the regard to having an Official Seal for use aboard, and such powers shall be vested in the Board, and the Company may cause to be kept in any state or country outside India, as may be permitted by the Act, a Foreign Register of Member or debenture-holders resident in any such State or country and the Board may from time to time, make such regulations as it may think fit respecting the keeping of any such Foreign Register, such regulations not inconsistent with the provisions of sections 157 and 158 of the Act.

MANAGING / WHOLETIME DIRECTORS

127. Subject to the provisions of the Act, the Board may from time to time appoint one or more Directors to be Managing or Wholetime Director or Directors of the Company with such designations for such period and on such terms and conditions as the Board may consider fit and may, from time to time (Subject to the provisions of any contract between him or them and the Company) remove or dismiss him or them from office and appoint another or others in his or their place or places.
128. (i) Subject to the provisions of section 255 of the Act a Managing Director or wholesome director shall not while he continues to hold that office, be liable to retirement by rotations but (subject to the provisions of any contract between him and the company) he shall be subject to the same provisions as to resignation and removal as the other Directors, and he shall if so ipso facto and immediately cease to be a Managing or Whole time Director if he ceases to hold the office of Director for any reason whatsoever save that if he shall vacate office whether by retirement by rotation or otherwise under the provisions of the Act. at any Annual General Meeting and shall be re-appointed a Director at the same meeting he shall not, by reason only of such vacation, cease to be a managing or wholetime Director.
- (ii) If at any time the total number of Managing and / or Wholetime Directors his more than one – third of the total number of Directors the Managing and or Wholetime Directors who shall not retire shall be determined by and in accordance with their respective senioritis. For the purpose of this Article the senioritis of the Managing and/ or wholetime Directors shall be determined by the date of their respective appointments as Managing and / or Wholetime Directors of the Company.
129. Subject to the provisions of Section 309,310,311,& 314 of the Act, a Managing or Whole time Director may in addition to any remuneration payable to him as a Director of the company under these Articles, receive such additional remuneration as may from time to time be sanctioned by the Company in General Meeting.
130. Subject to the provisions of the Act and in particular to the prohibitions and restrictions contained in Section 292 thereof, the Board may, from time to time, entrust to and confer upon a Managing or Wholetime Director for the time being such of the powers exercisable under these presents by the Board and such powers conferred may be either collateral with or to the exclusion of and in substitution for all or any of the Powers of the Board in that behalf; as it may think fit and may confer such powers for such time and to be exercised for such objects and purposes and upon such terms and conditions and with such restrictions as it thinks fit and such powers conferred may be either collateral with or to the exclusion of any in substitution for all or any of the powers of the Board in that behalf; and it may from time to time revoke, withdraw, alter or vary all or any of such powers.
131. Subject to the provisions of the Act the Board may from time to time, entrust or confer upon Managing Director for the time being such of the powers exercisable under these presents by the Board as it may think fit, and may confer such power for such time to be exercised for such objects and purpose and upon such terms and conditions and with such restrictions as it thinks fit and it may confer such powers

either collateral with or to the exclusion of and in substitution of all or any of the powers of the Board in that behalf and may from time to time revoke, withdraw, alter or vary all or any of such powers.

MANAGER, SECRETARY

132. Subject to the provisions of Sections 197A, 317, 388 and other applicable Sections of the Act the Board may, from time to time, appoint an individual as the Manager of the Company and may determine his powers and duties and fix his remuneration and the period for which and other terms and conditions on which he is to hold such office.
133. Subject to the provisions of Section 383A of the Act, the Board may, at any time and from time to time, appoint any individual possessing the prescribed qualification to be the Secretary of the Company and may determine his powers and duties and fix his remuneration and the period for which he is to hold such office.
134. (i) Subject to the provision of Section 269 and 314 of the Act, a Director may be appointed as manager or Secretary.
- (ii) A provisions of the Act or these Articles requiring or authorising a thing to be done by a director and the manager or secretary shall not be satisfied by its being done by the same persons acting both as director and as, or in place of, the manager or secretary.

THE SEAL

135. (i) The Board shall provide a seal for the purpose of the Company and shall have power, from time to time, to destroy the same and substitute a new seal in lieu thereof and, shall provided for the safe custody of the seal.
- (ii) The seal shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf, and same as provided in Article 10(i) hereof except in presence of at least two Directors or one Director and the Secretary or one director and such other person as the Board may appoint for the purpose and such Directors, Secretary or other person as aforesaid shall sign every instrument to which the seal is so affixed in their presence.

AUTHENTICATION OF DOCUMENTS

136. Any Director or the Secretary or any officer appointed by the Board for the purpose shall have power to authenticate any documents affecting the constitution of the Company and any books records, documents and accounts relating to the business of the Company, and to certify copies thereof or extracts therefrom as true copies or extracts and where any books, records, documents or accounts are elsewhere than at the office, the local manager or other officer of the Company having the custody thereof, shall be deemed to be a person appointed by the Board as aforesaid.
137. A document purporting to be a copy of resolution of the Board or an extract from the minutes of meeting of the Board which is certified as such in accordance with the provisions of the last preceding Article shall be conclusive evidence in favour of all persons dealing with the Company upon the faith thereof that such resolution has been duly passed or as the case may be that such extract is a true and accurate record of a duly constituted meeting of the Directors.

RESERVES

138. Subject to the provisions of the Act and the Rules prescribed thereunder the Board may, from time to time before recommending any dividend, set apart any such portion of the profits of the Company as it thinks fit as reserves to meet

contingencies or for the liquidation of any debentures, debts or other liabilities of the Company, for equalisation of dividends, for the repairing, improving or maintaining any of the property of the Company and for such other purposes of the Company as the Board in its absolute discretion thinks conducive to the interests of the Company ; and pending such application may, subject to the provisions of Section 372A of the Act, invest the several sums so set aside upon such investments (other than shares of the Company) as it may think fit, and from time to time deal with and vary such investments and dispose of all or any part thereof for the benefit of the Company, and may divide the Reserves into such special funds as it thinks fit, with full power to employ the Reserves or any parts thereof in the business of the Company, and that without being bound to keep the same separate from the other assets. The Board may also carry forward any profits, which it may think prudent not to divide without setting them aside as a reserve.

139.

All moneys carried to the Reserves shall nevertheless remain and be profits of the Company applicable, subject to due provisions being made for actual loss or depreciation, for the payment of dividends and such moneys and all the other moneys of the Company not immediately required for the purposes of the Company may, subject to the provisions of Section 372A of the Act, be invested by the Board in upon or such investments or securities as it may select or may be used as working capital or may be kept at any Bank on deposit or otherwise as the Board may, from time to time think proper.

CAPITALISATION OF RESERVES

140.

- A The Board of Directors, may subject to the provisions of the Act, capitalize any of the amount for the time being standing to the credit of any of the company's reserve accounts or to the credit of profit and loss account or representing premiums received on the issue of shares and standing to the credit of Securities Premium Account otherwise available for distribution.
- B The sum aforesaid shall not be paid in cash but shall be applied, subject to the provisions of the Companies Act, 1956 either in or towards:
 - i) Paying up any amount for the time being unpaid on any shares held by such members respectively;
 - ii) Paying up in full either at par or at such premium as the resolution may provide any unissued shares, debenture or debenture stock of the company to be allotted and distributed, credited as fully paid up to and amongst such members in proportion to their current holdings
 - iii) Partly in the way specified in sub-clause (i) and partly in that specified in sub-clause (ii).

141.

For the purpose of giving effect to any resolution under the preceding Article the Board may settle any difficulty which may arise in regard to the distribution as it thinks expedient and in particular may issue fractional certificates, and may determine that cash payments shall be made to any members in order to adjust the rights of all parties and may vest such fractions in trustees upon such trusts for the persons entitled to the capitalised fund as may seem expedient to the Board. Where requisite a proper contract shall be filed in accordance with Section 75 of the Act, and the Board may appoint any person to sign such contract on behalf of the persons entitled to the dividend or capitalised fund, and such appointment shall be effective and binding against all such persons.

DIVIDENDS

142.

Subject to the rights of members entitled to shares (if any) with preferential or special rights attached thereto, the profits of the Company (after making provisions, if any, for sinking, depreciation and reserve funds and for carrying forward balances for the next year) which it shall from time to time be determined to divide in respect of any year or other period shall be applied in the payment of a dividend on the equity shall Shares of the Company subject as provided in Article 20 hereof, in proportion to the amounts paid up on this same but so that where capital is paid up

in advance of calls carrying interest, such capital shall not rank for dividends or confer a right to participate in profits. All dividends shall be apportioned and paid prorata according to the amount paid up on the shares during any portion or portions of the period in respect of which the dividend is paid, but if any share is issued on terms providing that it shall rank for dividend as from a particular date, such share shall rank for dividends accordingly.

143. The Company in general meeting may declare a dividend to be paid to the members according to their rights and interest in the profits and may, subject to the provisions of Section 207 of the Act, fix the time for payment.
144. No larger dividend shall be declared than is recommended by the Board, but the Company in general meeting may declare a smaller dividend.
145. Subject to the provisions of Section 205 of the Act, no dividend shall be payable except out of the profits of the Company or out of money provided by the Central or a State Government for the payment of the dividend in pursuance of any guarantee given by such Government and no dividend shall carry interest against the Company.
146. Subject to the provisions of the Act, the declaration of the Board as to the amount of the net profits of the Company shall be conclusive.
147. The Board may, from time to time; paid to the members such interim dividends as appear to the Board to be justified by the profits of the Company.
148. The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the Company on account of calls on shares or otherwise and may retain any dividends on which the Company has a lien and may apply the same in or towards satisfaction of the debts, liabilities or engagements in respect of which the lien exists.
149. The Directors may retain the dividend payable upon shares in respect of which any person is under "The Transmission Article" entitled to become a member or which any person under that Article is entitled to transfer until such person shall become a member a respect thereof or shall duly transfer the same.
150. Any General Meeting declaring a dividend may make a call on the members of such amount as the meeting fixes, but so that the call on each member shall not exceed the dividend payable to him and so that the call be made payable at the same time as the dividend and the dividend may, if so arranged between the Company and the members, be said off against the call.
151. No dividend shall be payable except the in cash provided that nothing in the foregoing shall be deemed to prohibit the capitalisation of profits of reserves of the Company for the purpose of issuing fully paid up bonus shares or paying up any amount for the time being unpaid on the shares held by the members of the Company.
152. A Transfer of shares shall not pass the rights to any dividend declared thereon before the registration of the transfer by the Company.
153. The Company may pay interest on capital raised for the construction of works or buildings when and so far as it shall be authorised to do by Section 208 of the Act.
154. No dividend shall be paid in respect of any shares except to the registered holder of such share or to his order or to his bankers but nothing contained in this Article shall be deemed to require the bankers of a registered share holder to make a separate application to the Company for the payment of the dividend. Nothing in this Article shall be deemed to affect in any manner the operation of Article 142.

155. Any one of several persons who are registered as the joint-holders of any share may give effectual receipts for all dividends, bonuses and other payments in respect of such share.
156. Unless otherwise directed in accordance with Section 206 of the Act, any dividend, interest or other moneys payable in cash in respect of a share may be paid by cheque or warrant or money order sent through the post to the registered address of the members or person entitled thereto or, in the case of joint-holders, to the registered address of that one of the joint-holders who is the first named in the Register in respect of the joint-holding or to such persons and such address as the member or person entitled thereto or joint-holders, as the case may be, may direct, and every cheque or warrant so sent shall be made payable to the order of the persons to whom it is sent.
157. The Company shall comply with the requirements of Section 205A of the Act, as regards any unpaid or unclaimed dividends declared by the Company.

Books and Documents

158. The Board shall, in accordance with Section 209 of the Act, cause to keep proper books of account at the registered office of the Company or at such other place as it may decide, which together with the relevant vouchers shall be preserved in good order for the period as required by Section 209(4A) of the Act.
159. (i) The books of account and other books and documents shall be open to inspection during business hours by any Directors Registrar or other Government Officer authorised by the Central Government in this behalf.
- (ii) The Board shall, from time to time determine whether and to what extent, and at what times and places, and under what conditions or regulations, the books of account and books and documents of the Company, other than those referred to in Article 163 and 166 or any of them, shall be open to the inspection of the members not being Directors and no members (not being a Director) shall have any right of inspecting any books of account or book or document of the Company except as conferred by law or authorised by the Board or by the Company in general meeting.
160. At every Annual General Meeting the Board shall lay before the Company a Balance Sheet and Profit and Loss Account made up in accordance with the provisions of Section 210 of the Act and such Balance Sheet and Profit and Loss Account shall comply with the requirements of Section 210, 211, 212, 215 and 216 and the schedule VI to the Act so far as they are applicable to the Company but, save as aforesaid, the Board shall not be bound to disclose greater details of the result or extent of the trading and transactions of the Company than it may deem expedient.
161. There shall be attached to every Balance Sheet laid before the Company a report by the Board complying with the Section 217 of the Act.
162. A copy of every Balance Sheet (including the Profit and Loss Account, the Auditors' Report and every document required by law to be annexed or attached to the Balance Sheet) shall, as provided by Section 219 or the Act, not less than twenty-one days before the meeting be sent to every such member, debenture holder, trustee and other person to whom the same is required to be sent by the said Section.
163. Every Balance Sheet and Profit and Loss Account when Audited and approved by the General Meeting shall be conclusive except as regards any error discovered therein within three months next after the approval thereof. Whenever any such error is discovered within the period the account shall forthwith be corrected and thenceforth shall be conclusive, subject to the approval of the Company in General Meeting.

AUDIT

164. Once at least in every year one or more Auditor shall examine the books of account of the Company or Auditors appointed in accordance with the provisions of the Act.
165. The auditors Report (including the Auditors separate, special or supplementary report, if any shall be read before the company in general meeting and shall be open to inspection by any member of the company.
166. The appointment, remuneration, power, rights and duties of the Auditor or Auditors shall be regulated by section 224 to 229 and 231 of the Act.

SERVICE OF NOTICE AND DOCUMENTS

167. The Company shall serve a notice or other document to its members in accordance with section 53 and 172 of the Act.
168. (i) Any notice required to be given by the Company to the members or any of them and not expressly provided for by these Articles or by the Act shall be sufficiently given if give by advertisement.
- (ii) Any notice required to be or which may be given by advertisement shall be advertised once in one or more newspapers circulating in the neighborhood of the office.
- (iii) Any notice given by advertisement shall be deemed to have been given on the day on which the advertisement shall first appear.
169. Every person who by operation of law, transfer or other means whatsoever shall become entitled to any share shall be bound by every notice in respect of such share which previously to his name and address being entered on the Register shall have been duly given to the person from whom he derives his title to such share.
170. Subject to the provisions of Section 497 and 509 of the Act, in the event of a winding up of the company, every member of the company who is not for the time being in the place where the office of the company is situated shall be bound, within eight weeks after the passing of an effective resolution to wind up the company voluntarily or the making of an order for the winding up of the company, to serve notice in writing on the company appointing some householder residing in neighborhood of the office upon whom all summons, notices, processes, orders and judgements in relation to or under the winding up of the company may be served and in default of such nomination, the liquidator of the company shall be at liberty, on behalf of such members, to appoint some such person and service upon any such appointee whether appointed by the member or the liquidator shall be deemed to be good personal service on such member for all purposes, and where liquidator makes any such appointment he shall with all convenient speed give notice thereof to such member by advertisement in some daily newspaper circulating in the neighborhood of the office or by a registered letter send by post and addressed to such member at his addressed as registered in the Register and such notice shall be deemed to be served on the day on which the advertisement appears or the letter would be delivered in the ordinary course of the post. The provisions of this article does not prejudice the right of the liquidator of the Company to serve any notice or document in any other manner prescribed by these Articles.

KEEPING OF REGISTERS AND INSPECTION

171. The Company shall duly keep and maintain Register in accordance with sections 49(7), 58(A) 143, 150, 151, 152, 301, 303, 307, 370, 372 of the Act and Rule 7 of the Companies (issue of Share certificates) Rules 1960, at its office or such other places as may be decided by the Company in General Meeting by a special resolution

subject to the provisions of the Act.

172. The Company shall comply with the provisions of section 39,118,163,192,196,219, 301 302,304,307,370 and 372 of the Act as to the supplying of Copies of the Registers, deeds documents instruments, returns, certificates and books therein mentioned to the persons therein specified when so required by such persons on payment of the charges, if any, prescribed by the said sections.
173. Where under any provisions of the Act any person whether a member of the company or not, is entitled to inspect any register, return, certificate, deed, instrument or document required to be kept or maintained by the company, the persons so entitled to inspection shall be permitted to inspect the same during the hours of 2 p.m. and 4 p.m. on such business days as the Act requires then to be open for inspection.
174. The company may, after leaving not less than 7 days' previous notice by advertisement in some newspaper circulating in the district in which the office is situated close the Register of Members or the Register of Debenture – holders, as the case may be for any periods not exceeding in the aggregate 45 days' in each year but not exceeding 30 days at any one time.

MINUTES

175. The Board shall cause minutes of all proceedings of every General Meeting and of all proceedings of every meeting of the Board or every Committee of the Board to be kept in accordance with the provisions of section 193 of the Act, which shall be evidence of the proceedings recorded therein.
176. The Minute Books of General Meeting of the Company shall be kept at the office and shall be open to inspection by Members during the hours of 2 P.M. and 4 P.M. on such business days as the Act requires them to be open for inspection.

RECONSTRUCTION

177. On any sale of the under taking of the company the Board or the Liquidators on a winding up may, if authorised by Special Resolution, accept fully paid or partly paid-up shares, debentures or securities of any other company whether in corporate in India or not either then existing or to be formed for the purchase in whole or in part of the property of the company and the Board (If the profits of the company permit) or the liquidators (In a winding up) may distribute such shares or securities, or any other property of the company amongst the members without realisation, or vest the same in trustees for them and any Special Resolution may provide for the distribution or appropriation of the cash, shares or other securities, benefit or property, otherwise than in accordance with the strict legal rights of the members or contributories of the company, and for the valuation of any such securities or property at such price and in such manner as the meeting may approve and all holders of shares shall be bound to accept and shall be bound by any valuation or distribution so authorised, and waive all rights in relation thereto, save only in case the company is proposed to be or is in the course of being woundup, such statutory rights (if any) under section 494 of the Act. as are incapable of being varied or excluded by these Articles.

SECRECY

178. Every Director, Manager, Auditor, Secretary, Trustee for the company, its members or Debenture – holders, Member of a committee, Officer, Servant, Agent, Accountant, or other person employed in or about the business of the company shall, if so required by the Board or the Managing director before entering upon his duties, sign a declaration pledging himself to observe a strict a secrecy respecting all transactions of the company with its customers and the state of accounts with individuals and in matters relating thereto, and shall by such declaration pledge

himself not to reveal any of the matters which may come to his knowledge in the discharge of his duties except when required so to do by the board or by any general meeting or by a court of law by the persons to whom such matters relate and except so far as may be necessary in order to comply with any of the provisions, in these articles contained .

179. No member or other person (not being a Director) shall be entitled to enter upon the property of the company or to inspect or examine the premise or properties of the Company without the permission of the Board or, subject to Article 149 to require discovery of or any information respecting any detail of the trading of the Company or any matter which is or may be in the nature of a trade secret, mystery of trade, or secret process or of any matter whatsoever which may relate to the conduct of the business of the Company and which in the opinion of the Board, it will be inexpedient in the interest of the Company to the communicate.

WINDING – UP

180. Upon the winding – up of the Company the holders of preference shares, if any shall be entitled to be paid all arrears of preferential dividend to the commencement of winding up and also to be repaid the amount of capital paid up or credited as paid upon such preference shares held by them respectively, in priority to the Equity Shares but shall not be entitled to any further rights to participate in profits or assets; subject as aforesaid and to the rights of any other holders of shares entitled to receive preferential payment over the Equity Share in the event of the winding up of the company, the holders of the Equity share shall be entitled to be repaid the amount of capital paid up or credited as paid up on such Shares and all surplus assets thereafter shall belong to the holders of the equity shares in proportion to the amount paid up or credited as paid up on such Equity Shares respectively, at the commencement of the winding up. If the assets shall be insufficient to repay the whole of the paid up Equity Capital such assets shall be distributed so that as nearly as may be the losses shall be borne by the members holding Equity Shares in proportion to the capital paid or which ought to have been paid on the Equity Shares held by them respectively at the commencement of the winding up, other than the amounts paid by them in advance of calls.

181. If the company shall be wound up, whether voluntarily or otherwise, the liquidators may, with the sanction of a special Resolution of the Company and any other sanction required by the act, divide among the contributors in specie or kind any part of the assets of the company and may with the like sanction vest any part of the assets of the company in trustees upon such trusts for the benefit of the contributors, or any of them as the Liquidators, with the like the sanction shall think fit.

MEMBERS

182. Every person who is a subscriber to the Memorandum and Articles and/or who intends to be or becomes a member of the Company shall, subject to the provisions of any law in force, be bound by the provisions of the Memorandum and Articles of the Company, and any matter of dispute arising between the Company and any such person as regards mutual rights, obligations or otherwise shall be subject to the jurisdiction of the court having jurisdiction over the registered office of the Company in respect to the disputed matter.

INDEMNITY

183. (i) Subject to the provision of section 201 of the Act, every Director, Manager, Secretary and other Officer or Employee of the Company shall be indemnified against and it shall be the duty of the Directors to pay out of the funds of the Company all costs, losses and expenses (including travelling expenses) which any such Directors, Manager, or Secretary or other Officer or Employee may incur or become liable to by reason of any contract entered into or any way in the discharge of his or their duties and in particular, and so as not to limit the generality of the

foregoing provisions, against all liabilities incurred by him or them as such Director, Manager, Secretary, Officer or Employees in defending any proceedings whether civil or criminal, in which judgement is given in his or their favour or he or they is or are acquitted or in connection with any application under Section 633 of the Act in which relief is granted by the court; and the amount for which such indemnity is provided shall immediately attach as a lien on the property of the Company and have priority as between the members over all other claims.

- (ii) Subject to the provisions of the Act and so far as such provisions permit, no Director, Auditor or other officer of the Company shall be liable for Acts, receipts, neglects or defaults of any other Director or officer, or for joining in any receipt or act for conformity, or for any loss or expense happening to the Company through the insufficiency or deficiency of title to any property required by order of the Directors for or on behalf of the Company or for the insufficiency or deficiency of any security in or upon which any of the moneys of the Company shall be invested, or for any loss occasioned by any error of judgement, omission, default, or oversight on his part, or for any loss damage or misfortune whatever which shall happen in the execution of the duties of his officer or in relation thereto, unless the same happens through his own dishonesty.

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We, the several person whose name, addresses and descriptions are subscribed below are desirous of being formed into a Company in pursuance of the Memorandum / Articles of Association and we respectively agree to take the number of shares in the Capital of the Company set opposite to our respective names: -

Signatures, Names, Addresses, Father's Name, Description & Occupation of each Subscriber	Number of Equity Shares to be taken by each Subscriber	Signature, Names, Addresses, Description, Occupation and Membership No. Of Witness
x <i>[Signature]</i> PASANT KUMAR AGRAWAL 391 SN ROY ROAD KOLKATA-700 038 S/O LT RAHAKISHAN AGRAWAL INDUSTRIALIST	8000 (Eight Thousand only)	
<i>[Signature]</i> SURESH KUMAR AGRAWAL 391 SN ROY ROAD KOLKATA-700 038 S/O LT JAHNUPRASAD AGRAWAL INDUSTRIALIST	7000 (Seven Thousand only)	
<i>[Signature]</i> MAHAJAI PRASAD AGRAWAL 391 SN ROY ROAD KOLKATA-700 038 S/O LT JAHNUPRASAD AGRAWAL INDUSTRIALIST	7000 (Seven Thousand only)	
TOTAL		

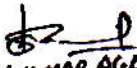
Kolkata, Dated 24.03.2011

Witness to all the Signatures

SANDIP KUMAR KESTIWAL, FCS
 # 327, 1 R.N. MUKHERJEE RD
 Ullahabad-1
 OCC: Practitioner
 FCS CP NO: 7021

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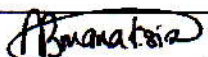
We, the several person whose name, addresses and descriptions are subscribed below are desirous of being formed into a Company in pursuance of the Memorandum / Articles of Association and we respectively agree to take the number of shares in the Capital of the Company set opposite to our respective names: -

Signatures, Names, Addresses, Father's Name, Description & Occupation of each Subscriber	Number of Equity Shares to be taken by each Subscriber	Signature, Names, Addresses, Description, Occupation and Membership No. Of Witness
Basdeo Agrawal BASUDEO AGRAWAL 391 SN ROY ROAD KOLKATA-700 038 S/O KT RADHA KISHAN AGRAWAL BUSINESS	7000 (Seven Thousand only)	
 SUMIT KUMAR AGRAWAL 391 SN ROY ROAD KOLKATA-700 038 S/O MAHABIR PRASAD AGRAWAL INDUSTRIALIST	7000 (Seven Thousand only)	
Vineet Agrawal VINEET AGRAWAL 391 SN ROY ROAD KOLKATA-700 038 S/O BASUDEO AGRAWAL BUSINESS	7000 (Seven Thousand only)	
TOTAL		Witness to all three subscribers  SANDIP KUMAR KETRIWAL, ICS # 322, 1 R. N. Mukherjee Rd. Kolkata - occ: Professor ICS UP: 2821

Kolkata, Dated 24-03-2011

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We, the several person whose name, addresses and descriptions are subscribed below are desirous of being formed into a Company in pursuance of the Memorandum / Articles of Association and we respectively agree to take the number of shares in the Capital of the Company set opposite to our respective names: -

Signatures, Names, Addresses, Father's Name, Description & Occupation of each Subscriber	Number of Equity Shares to be taken by each Subscriber	Signature, Names, Addresses, Description, Occupation and Membership No. Of Witness
 ADITYA B MANKIA 391 SAHAY ROAD KOLKATA-700038 SIBASANT KUMAR AGRAWAL BUSINESS	7000 (Seven thousand only)	Witness is all on grounds.  SANDIP KUMAR KESERWAL, RES # 222, 1A.W. MUKHERJEE RD. VILLAGE - 1 DIST: PURBA P.S. CP: 3821
TOTAL	5000 (Five thousand)	

Kolkata, Dated 24.03.2011